

CHAPTER 31

An Act to authorise the Secretary of State to assist persons concerned with the provision of sea transport services serving the Highlands and Islands; and for purposes connected with the matter aforesaid. [2nd June, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Assistance
to persons
providing
sea transport
services.

1.—(1) For the purposes of maintaining and improving sea transport services serving the Highlands and Islands (hereinafter referred to as “the purposes of this Act”) the Secretary of State may assist in accordance with this Act persons—

(a) who provide, and are wholly or mainly engaged in providing, such services,

(b) who provide such services and are local authorities within the meaning of the Harbours, Piers and Ferries (Scotland) Act, 1937, or

(c) who propose to provide such services.

(2) In the foregoing subsection “sea transport services” means public transport services (including such services ancillary thereto as are necessary for the proper functioning thereof) provided in an undertaking which consists of, or includes to a substantial extent, the provision of public transport by sea.

Advances and
charter of
ships.

2.—(1) For the purposes of this Act the Secretary of State may, with the consent of the Treasury and subject to the provisions of this section,—

(a) undertake to make, and make, advances either by way of grant or by way of loan, or partly in one of those ways and partly in the other, on such terms and conditions as he considers expedient for the purposes of this Act, to persons of the descriptions specified in the foregoing section;

(b) enter into contracts for the charter to such persons of ships for the time being held by him under this Act.

(2) The Secretary of State shall not under this section undertake to make, or make, any advance to, or enter into any contract with, any person of a description specified in the foregoing section who provides regular public transport services serving places outwith the Highlands and Islands otherwise than incidentally to the service of places within the Highlands and Islands.

(3) Where the Secretary of State proposes under this section to make to any person in any financial year any advance which,

1 Edw. 8 &
1 Geo. 6. c. 28.

by itself or taken with any other advance made or to be made under this section to that person in that financial year, exceeds in the aggregate the sum of ten thousand pounds he shall do so only in accordance with an undertaking a draft of which (including the terms and conditions upon which the undertaking is proposed to be made) has been laid before Parliament and approved by a resolution of the Commons House thereof.

3.—(1) For the purposes of paragraph (b) of subsection (1) **Supplementary provisions.** of the last foregoing section the Secretary of State may enter into contracts with others for the building by them of ships for acquisition by him, and may acquire, or take on charter, and hold ships; and with respect to any ship for the time being held by him under this section he may do all things necessary for, or incidental to, its maintenance, may cause it to be altered, modified or converted and may dispose of it in such manner as he thinks fit.

(2) The power conferred by this section to acquire ships may be exercised by way of purchase, exchange or otherwise.

4. Any expenses incurred by the Secretary of State under this **Expenses and receipts.** Act shall be defrayed out of moneys provided by Parliament, and any receipts of the Secretary of State under this Act shall be paid into the Exchequer.

5. In this Act, unless the context otherwise requires,— **Interpretation.**

“financial year” means the period beginning with the commencement of this Act and ending with the thirty-first day of March, nineteen hundred and sixty-one, and each subsequent period of twelve months beginning with the first day of April;

“Highlands and Islands” means the counties specified in the Schedule to this Act, inclusive of any burgh situated therein;

“sea transport services” has the meaning assigned to it by section one of this Act;

“ships” includes boats and vessels of any description for use in navigation.

6.—(1) This Act may be cited as the Highlands and Islands **Citation and extent.** Shipping Services Act, 1960.

(2) This Act shall extend to Scotland only.

SCHEDULE

COUNTIES TO WHICH SECTION ONE APPLIES

The County of Argyll.
 The County of Caithness.
 The County of Inverness.
 The County of Orkney.
 The County of Ross and Cromarty.
 The County of Sutherland.
 The County of Zetland.

CHAPTER 32

An Act to make permanent the Population (Statistics) Act, 1938, and to make further provision as to matters with respect to which particulars may be required under that Act and as to certificates to be produced on the registration of still-births. [2nd June, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment
of Population
(Statistics)
Act, 1938.
1 & 2 Geo. 6.
c. 12.

1.—(1) The Population (Statistics) Act, 1938, as amended by subsequent enactments, including this Act, shall have permanent effect; and accordingly subsection (4) of section seven thereof (which provides for the Act to have temporary effect) is hereby repealed.

(2) The Schedule to this Act shall be substituted for the Schedule to the said Act of 1938.

Amendments
as to
certificates of
still-birth in
England and
Wales.

1 & 2 Eliz. 2.
c. 20.

2.—(1) In section eleven of the Births and Deaths Registration Act, 1953 (which contains special provisions as to the registration of still-births), for paragraph (a) of subsection (1) (which requires the informant to deliver to the registrar a written certificate that the child was not born alive, signed either by a registered medical practitioner or a certified midwife) there shall be substituted the following paragraph—

“(a) deliver to the registrar a certificate in the prescribed form signed by a registered medical practitioner who was present at the birth or has examined the body of the child, or, if no registered medical practitioner was so present or has examined the body, by a certified midwife who was so present or has examined the body,